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UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF WASHINGTON
AT SPOKANE

JANE ELIZABETH ROBERTS, et al., Plaintiffs, v. SHRINERS HOSPITALS FOR CHILDREN, SHRINERS HOSPTIALS FOR CHILDREN SPOKANE, BEVERLY BOKOVITZ, FRANCES FARLEY, JERRY GANTT, JOHN McCABE, PHILLIP GRADY, PETER BREWER, and GOV. JAY INSLEE, et al., Defendants.	No. 2:23-cv-00295-TOR DEFENDANT GOVERNOR JAY INSLEE'S MOTION TO DISMISS March 6, 2024 WITHOUT ORAL ARGUMENT

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I. INTRODUCTION

To combat the COVID-19 pandemic—the deadliest in American history—Defendant Governor Jay Inslee issued Proclamation 21-14 requiring healthcare workers in Washington and most state employees to be fully vaccinated against COVID-19 (the "Proclamation" or "Procl. 21-14"). The requirement was in step with mandates adopted in roughly half the country, and supported by federal guidance showing the vaccines to be safe and effective in reducing the virus' spread and the risk of severe illness or death. By August 23, 2021, nearly two months before the Proclamation took effect, the U.S. Food and Drug Administration (FDA) granted full approval to the Pfizer vaccine.

Plaintiffs—former at-will employees of Defendant Shriners Hospitals for Children and Shriners Hospitals for Children Spokane (collectively, "Shriners") who declined to receive a COVID-19 vaccine—have filed a ranging, slapdash complaint raising 10 causes of action under the U.S. Constitution and Washington State law—each of which fails as a matter of law for multiple reasons. Only weeks ago, the United States District Court for the Western District of Washington dismissed as meritless functionally identical claims brought by the same counsel in *Curtis v. Inslee*, No. 3:23-cv-05741-RJB, 2023 WL 8828753, at *8 (W.D. Wash. Dec. 21, 2023). As in *Curtis*, the complaint here relies on a misstatement of the relevant facts (*e.g.*, contending the vaccines were "investigational drugs" when the

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Pfizer vaccine was indisputably fully approved at the time the Proclamation was issued), disregards relevant case law (which has consistently upheld vaccine mandates, including the Proclamation specifically, and rejected claims like Plaintiffs'), and fails to distinguish between the actions of Shriners (a private, non-profit healthcare provider) and the Governor. For these reasons and those explained in detail below, each claim against Governor Inslee fails as a matter of law and should be dismissed with prejudice.

II. STATEMENT OF FACTS

This factual summary is based on the allegations in the Complaint, documents attached to the Complaint, and judicially noticeable facts. *See* Fed. R. Civ. P. 12(b)(6); *Tellabs, Inc. v. Makor Issues & Rights, Ltd.*, 551 U.S. 308, 322 (2007). Governor Inslee asks the Court to take judicial notice of the government records and data cited herein—including from the Federal Drug Administration (FDA), the U.S. Centers for Disease (CDC), and the Washington State Department of Health (DOH). *See* Fed. R. Evid. 201; *King v. Cnty. of L.A.*, 885 F.3d 548, 555 (9th Cir. 2018).

A. The COVID-19 Pandemic and Washington's Emergency Response

In response to the COVID-19 pandemic, "[g]overnments at all levels instituted restrictions to curb the transmission of the virus." *Slidewaters LLC v. Wash. Dep't of Labor & Indus.*, 4 F.4th 747, 752 (9th Cir. 2021), *cert. denied*, 142

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S. Ct. 779 (2022). Even with those restrictions, COVID-19 has killed more than 1.1 million Americans, including over 15,000 Washingtonians[1]—making it the "deadliest disease in American history." *Florida v. Dep't of Health & Human Servs.*, 19 F.4th 1271, 1275 (11th Cir. 2021) (cleaned up).

On February 29, 2020, amidst the initial COVID-19 outbreak in Washington, Governor Inslee proclaimed a state of emergency. *Slidewaters*, 4 F.4th at 753; Procl. 20-05.[2] Between December 2020 and February 2021, the FDA issued Emergency Use Authorizations (EUAs) for three COVID-19 vaccines developed by Pfizer, Moderna, and Johnson & Johnson.[3] In October 2020, Washington joined California, Oregon and Nevada in a COVID-19 Scientific Safety Review Workgroup (the "Workgroup"), which employed public health and vaccine experts to independently review the safety and efficacy of these vaccines.[4]

---

[1] CDC, *COVID Data Tracker*, Trends in United States COVID-19 Hospitalizations, Deaths, Emergency Department (ED) Visits, and Test Positivity by Geographic Area, https://bit.ly/460tjY7 (last visited Jan. 14, 2024).

[2] That state of emergency ended on October 31, 2022. Procl. 20-05.1. A repository of Governor Inslee's emergency proclamations is available at: Office of Governor Jay Inslee, *Proclamations*, https://governor.wa.gov/office-governor/office/official-actions/proclamations (last visited Jan. 14,, 2024).

[3] FDA, *FDA Authorizes Pfizer-BioNTech COVID-19 Vaccine for Emergency Use in Children 5 through 11 Years of Age* (Oct. 29, 2021), http://bit.ly/3ZSWgmb; FDA, *Janssen COVID-19 Vaccine* (May 11, 2022), http://bit.ly/3l3SnvW; *Moderna COVID-19 Vaccine*, https://www.fda.gov/vaccines-blood-biologics/coronavirus-covid-19-cber-regulated-biologics/moderna-covid-19-vaccine (last visited Jan. 14, 2024).

[4] *See Western States Join California's Scientific Safety Review Workgroup to Ensure Safety of COVID-19 Vaccine* (Oct. 27, 2020), https://www.gov.ca.gov/2020/10/27/western-states-join-californias-scientific-safety-review-workgroup-to-ensure-safety-of-covid-19-vaccine/.

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Between December 12, 2020 and April 24, 2021, the Workgroup recommended the use of the Pfizer, Moderna, and Johnson & Johnson vaccines.[5]

The FDA gave full approval to Pfizer's vaccine for people 16 years and older on August 23, 2021.[6] *Church v. Biden*, No. 21-2815 (CKK), 2022 WL 1491100, at *2 (D.D.C. May 11, 2022). The CDC considers the vaccines to be safe and effective in reducing the risk of severe illness or death due to COVID-19.[7] To facilitate the administration of the vaccines, the CDC entered into COVID-19 Vaccination Provider Agreements ("Provider Agreements") with healthcare providers in the various states, including Washington. Dkt. #1 (the "Complaint") ¶ 207, 209–10, Ex. A.

B. The Delta Surge and Proclamation 21-14

Summer 2021 saw the emergence of the "Delta variant": a new, highly infectious COVID-19 strain. *See Does 1–6 v. Mills*, 16 F.4th 20, 2627 (1st Cir. 2021), *cert. denied sub nom. Does 1–3 v. Mills*, 142 S. Ct. 1112 (2022) (Mem).

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[5] *See* https://www.cdph.ca.gov/Programs/CID/DCDC/CDPH%20Document%20Library/COVID-19/Scientific-Safety-Review-Workgroup-Recommendations-December-2020.pdf (last visited Jan. 14, 2024); https://www.cdph.ca.gov/Programs/CID/DCDC/CDPH%20Document%20Library/COVID-19/ScientificWorkgroup122020.pdf (last visited Jan. 14, 2024); Cal. Dep't of Pub. Health, *Western States Scientific Safety Review Workgroup* (Apr. 24, 2021), https://www.cdph.ca.gov/Programs/CID/DCDC/Pages/COVID-19/WSSSRWStatementunJJPause.aspx.

[6] *See* FDA, *FDA Approves First COVID-19 Vaccine* (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine.

[7] CDC, *Overview of COVID-19 Vaccines* (Jan.. 12, 2024), http://bit.ly/3FdTjVv.

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Twice as infectious as earlier variants, *id*., Delta spread like wildfire, causing Washington's weekly COVID-19 hospitalization count to jump from a low of 293 the week of June 26, 2021 to 1,192 the week of September 4, 2021.[8] While "no vaccine is 100% effective," the COVID-19 vaccines proved highly effective at preventing the virus's spread and severe disease—particularly with the Delta variant. *Mass. Corr. Officers Federated Union v. Baker*, 567 F. Supp. 3d 315, 319–20 (D. Mass. 2021). According to a September 2021 CDC report (when Delta was dominant), unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[9] Despite such stark disparities, the Delta surge coincided with a steady decline in vaccination rates.[10] In August 2021, nearly 30% of eligible Washingtonians were unvaccinated. Procl. 21-14 at 2.

On August 9, 2021, Governor Inslee issued Proclamation 21-14, prohibiting healthcare providers and most state employees from working after October 18, 2021, without being fully vaccinated against COVID-19, i.e., at least two weeks post-final dose. Procl. 21-14. Recognizing that COVID-19 vaccines had been

[8] CDC, *COVID Data Tracker*, *supra* note 1.
[9] CDC, *Morbidity and Mortality Weekly Report (MMWR)*(Sept. 17, 2021), http://bit.ly/3YQ9tMM.
[10] DOH, *COVID-19 Vaccination Data*, https://doh.wa.gov/data-statistical-reports/health-behaviors/immunization/covid-19-vaccination-data (last visited Jan. 14, 2024).

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found safe and effective based on clinical trials involving tens of thousands of participants and the FDA's rigorous scientific standards, and consistent with the recommendations of the Workgroup, Governor Inslee issued the Proclamation in order to protect some of the most vulnerable populations and ease the burden on Washington's public and private healthcare system. *Id*. at 1–2.

When it took effect, the Proclamation applied to at least 681,000 workers across the three covered sectors: state government, health care, and education. *Wise v. Inslee*, No. 2:21-CV-0288-TOR, 2021 WL 4951571, at *1 (E.D. Wash. Oct. 25, 2021), *appeal dismissed*, No. 22-35426, 2022 WL 17254335 (9th Cir. Oct. 7, 2022). The Proclamation required covered employers to evaluate requests for medical and religious exemptions and provide reasonable accommodations, consistent with state and federal antidiscrimination statutes. Procl. 21-14 at 4–5. Covered employers had to "conduct[] an individualized assessment and determination of each individual's need and justification for an accommodation." Procl. 21-14.1 at 6.

Independent of the Proclamation, the federal government issued its own COVID-19 vaccination requirement for most U.S. healthcare workers. In November 2021, the U.S. Department of Health and Human Services (HHS) announced that, as a condition of federal Medicare and Medicaid funding, healthcare "facilities must ensure that their staff—unless exempt for medical or

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religious reasons—are vaccinated against COVID-19." *Biden v. Missouri*, 595 U.S. 87, 89 (2022) (citing 86 Fed. Reg. 61555 (2021)). HHS found that "vaccination of healthcare workers against COVID-19 was 'necessary for the health and safety of individuals to whom care and services are furnished.'" *Id*. at 91 (quoting 86 Fed. Reg. at 61561). This finding was based on "data showing that the COVID-19 virus can spread rapidly among healthcare workers and from them to patients, and that such spread is more likely when healthcare workers are unvaccinated." *Id*. HHS concluded that "unvaccinated [healthcare staff] . . . pose a serious threat to the health and safety of patients." *Id*. The Supreme Court held that the Secretary of HHS did not exceed its authority in adopting the vaccination rule, found that it was not arbitrary and capricious, and rejected other various challenges to it. *Id*. at 95–97.

C. Unsuccessful Legal Challenges to the Proclamation

After the Proclamation was issued, multiple lawsuits were filed challenging it as facially unconstitutional under a variety of theories. Those challenges were uniformly rejected—including by this Court. *See e.g., Bacon v. Woodward*, No. 2:21-CV-0296-TOR, 2022 WL 2381021, at *1 (E.D. Wash. June 30, 2022) (Rice, J.), *appeal docketed*, No. 22-35611 (9th Cir. Aug. 2, 2022) (dismissing challenge to Proclamation); *Wise v. Inslee*, No. 2:21-CV-0288-TOR, 2022 WL 1243662, at *5 (E.D. Wash. Apr. 27, 2022) (Rice, J.), *appeal dismissed*, No. 22-35426, 2022

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WL 17254335 (9th Cir. Oct. 7, 2022) (same); *Pilz v. Inslee*, No. 3:21-cv-05735-BJR, 2022 WL 1719172, at *1 (W.D. Wash. May 27, 2022) (same). Similar challenges across the country have likewise failed. *See, e.g., George v. Grossmont Cuyamaca Cmty. Coll. Dist. Bd. of Governors*, No. 22-cv-0424-BAS-DDL, 2022 WL 17330467, at *1 (S.D. Cal. Nov. 29, 2022) ("This action is one of over approximately 1,000 challenges brought nationwide to strike down COVID-19 vaccine mandates . . . Overwhelmingly, these suits have been unsuccessful.") (cleaned up).

In August 2022, after this and other courts had dismissed all legal challenges to the Proclamation and as COVID-19 cases ebbed, the Governor announced termination of the Proclamation and the underlying state of emergency, effective October 31, 2022. *See* Procl. 21-14.6 at 2 (rescinding and terminating Proclamation 21-14 et seq., effective October 31, 2022, at 11:59 PM); Procl. 20-05.1 (declaring "the termination of the state of emergency proclaimed in Proclamation 20-05 and rescind[ing] and terminat[ing] Proclamation 20-05" effective October 31, 2022, at 11:59 PM).

D. The *Curtis* Lawsuit

On August 18, 2023 counsel for plaintiffs in this case filed a lawsuit in the United States District Court for the Western District of Washington, alleging largely the same claims that are raised here. *Curtis*, 2023 WL 8828753, at *8. The

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Curtis plaintiffs—former employees of PeaceHealth who lost their jobs after refusing to get vaccinated against COVID-19—brought ten causes of action alleging that the vaccination requirement violated their rights under various federal and state law claims. *Id*. at *4–*8. On December 21, 2023, the court dismissed all of the plaintiffs' claims against Governor Inslee on the grounds that the complaint failed to allege any actual violation of federal or state law and that Governor Inslee was entitled to immunity from suit. *Id*.

E. The Complaint's Allegations

On October 13, 2023, several former employees of Shriners, a non-profit healthcare system, filed this lawsuit against Shriners, several Shriners executives, and Governor Inslee (in his official and individual capacities). Compl. ¶¶ 19–19.9. Plaintiffs allege that Shriners and Governor Inslee unlawfully required healthcare workers to take the COVID-19 vaccine as a condition of their continued employment, invoking an array of unsupported legal theories. Plaintiffs' laundry list of scattershot claims closely resembles—and in many cases copies verbatim—the recently dismissed claims in *Curtis*.

Specifically, Plaintiffs allege in ten causes of action that: (1) Defendants subjected them to investigational medical products without their consent, contrary to the Emergency Use Authorization Act, 21 U.S.C. § 360bbb-3 (the "EUA Act"), 45 C.F.R. § 46.116(b)(8), the Belmont Report, and Article VII of the International

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Covenant on Civil and Political Rights; (2) Defendants violated Plaintiffs' substantive and procedural due process rights; (3) Defendants violated the Equal Protection Clause; (4) Defendants deprived Plaintiffs of their rights under the Spending Clause Doctrine; (5) Defendants violated the unconstitutional conditions doctrine; (6) Defendants violated the Public Readiness and Emergency Preparedness Act, 42 U.S.C §247d-6d *et seq.* (the "PREP Act"); (7) Defendants breached the CDC COVID-19 Vaccination Program Provider Agreement; (8) Defendants committed Washington State common law employment torts; (9) Defendants' actions give rise to a claim of outrage; and (10) they have an implied right of action under the EUA Act. Compl. ¶¶ 315–409. Plaintiffs seek compensatory, general, and punitive damages. *Id*. ¶ 411–12. The only claim asserted in this case that was not raised and rejected in *Curtis* is count six: a facially defective claim under the PREP Act.

Governor Inslee now moves to dismiss all claims against him.

III. ARGUMENT AND AUTHORITY

A. Legal Standard

To survive a motion to dismiss for failure to state a claim under Federal Rule of Civil Procedure 12(b)(6), "a complaint must contain sufficient factual matter, accepted as true, to state a claim to relief that is plausible on its face." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009) (cleaned up). "A claim has facial plausibility when

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the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Id*. Whether a complaint states a claim for relief "requires the reviewing court to draw on its judicial experience and common sense." *Id*. at 679. "[T]he court need not accept as true 'allegations that contradict matters properly subject to judicial notice.'" *Sterling Sav. Bank v. Clark Cnty. Bankcorporation*, No. CV-11-0224-JLQ, 2011 WL 4852326, at *6 (E.D. Wash. Oct. 13, 2011) (quoting *St. Clare v. Gilead Scis., Inc. (In re Gilead Scis. Sec. Litig.)*, 536 F.3d 1049, 1055 (9th Cir. 2008)). Dismissal may be based on either the "lack of a cognizable legal theory or absence of sufficient facts alleged under a cognizable legal theory." *Conservation Force v. Salazar*, 646 F.3d 1240, 1242 (9th Cir. 2011).

B. Plaintiffs' § 1983 Claims Fail

To state a claim under §1983, Plaintiffs must show that Governor Inslee acted under color of law to deprive them of a right or privilege specifically enumerated under the United States Constitution or the laws of the United States. But Governor Inslee is not subject to suit under § 1983 in either his official or individual capacity. And despite alleging six distinct counts under § 1983, Plaintiffs fail to identify any specific right that the Proclamation purportedly violated. The Court should, therefore, dismiss Plaintiffs' § 1983 claims against Governor Inslee.

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1. Plaintiffs Cannot Sue Governor Inslee Under § 1983

a. Governor Inslee is not subject to suit in his official capacity

Section 1983 establishes liability for "person[s]" who cause the "deprivation of any rights, privileges, or immunities secured by the Constitution and laws" of the United States. 42 U.S.C. § 1983. But state officials acting in their official capacity are not "persons" subject to suit under Section 1983, unless they are sued for prospective injunctive relief. *Curtis*, 2023 WL 8828753, at *4 (dismissing all 1983 claims against Governor Inslee in his official capacity); *Will v. Mich. Dep't of State Police*, 491 U.S. 58, 70–71 (1989); *see also Cipolla v. Ariz. Dep't of Econ. Sec.*, 57 F.3d 1076 (9th Cir. 1995) (affirming dismissal of 1983 claim because "neither a state nor any of its officials sued in an official capacity is a 'person' suable under section 1983"); *Wright v. Airway Heights Corr. Ctr. MSU*, No. 2:20-cv-00436-MKD, 2022 WL 17543678, at *3 (E.D. Wash. Dec. 8, 2022), *appeal docketed*, No. 22-36057 (9th Cir. 2022) ("State agencies and state officials sued in their official capacity are categorically not subject to suit under 42 U.S.C. § 1983.").

Because Plaintiffs seek only damages, not prospective injunctive relief, Compl. ¶¶ 410-16, Governor Inslee is not subject to suit under 42 U.S.C. § 1983 in his official capacity. *See Curtis*, 2023 WL 8828753, at *4 ("[A]ll federal claims asserted against Gov. Inslee, in his official capacity, should be dismissed because

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he is not a 'person' as is required to bring a claim against him, in his official capacity, under § 1983.").

b. Governor Inslee is entitled to qualified immunity in his individual capacity.

Governor Inslee is also entitled to immunity from suit in his individual capacity. *See infra* Section III.D; *Curtis*, 2023 WL 8828753, at *7 ("Gov. Inslee is entitled to qualified immunity on all federal claims."). Because Plaintiffs cannot bring § 1983 claims against Governor Inslee in his individual or official capacity, the Court should dismiss Plaintiffs' claims with prejudice.

2. Plaintiffs' § 1983 Claims Fail as a Matter of Law.

Even if Governor Inslee could be sued under § 1983, Plaintiffs' claims would fail on the merits. "Although federal statutes have the potential to create § 1983 enforceable rights, they do not do so as a matter of course." *Health and Hospital Corp. of Marion Cnty. v. Tavelski*, 599 U.S. 166, 183 (2023). Instead, to be enforceable under § 1983, a federal law must "unambiguously confer" a right on a class of intended beneficiaries, *Gonzaga Univ. v. Doe*, 536 U.S. 273, 283 (2002), which is a "demanding bar," *Health & Hosp. Corp. of Marion Cnty. v. Talevski*, 599 U.S. at 180.

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Plaintiffs have not identified any enforceable federal right, let alone any right implicated by the Proclamation. The Court should dismiss their § 1983 claims.

a. Plaintiffs' "investigational drug use" claim fails (Count 1)

i. The COVID-19 vaccine is not an "investigational drug."

Plaintiffs' first claim that they were "[s]ubjected to Investigational Drug Use," Compl. ¶¶ 315–25, fails because the COVID-19 vaccine is not an "investigational drug." "An 'investigational new drug' is "a new drug or biological drug that is used in a clinical investigation," 21 C.F.R. § 312.3, and that has "not yet been approved or cleared by the FDA and the FDA has not found . . . to be safe and effective for their specific use," *see* FDA Expanded Access: Information for Patients, https://www.fda.gov/news-events/expanded-access/expanded-access-information-patients#:~:text=Investigational (last visited Jan.. 14, 2024).

Plaintiffs do not allege they were part of any "clinical investigation," and cannot dispute that on August 23, 2021—*before* Plaintiffs were required to obtain a COVID vaccine under the Proclamation—the Pfizer vaccine received full FDA authorization. *See* FDA, *FDA Approves First COVID-19 Vaccine* (Aug. 23, 2021), https://www.fda.gov/news-events/press-announcements/fda-approves-first-covid-19-vaccine; *see also Curtis*, 2023 WL 8828753, at *2 (taking judicial notice of fact

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that "[t]he Pfizer-BioNTech vaccine received approval on August 23, 2021."); *Valdez v. Grisham*, 559 F.Supp.3d 1161, 1171 (D.N.M. 2021).[11] And while Plaintiffs falsely assert that "[n]o FDA-licensed COVID-19 vaccines have been introduced into commerce for general commercial marketing," Compl. ¶ 64, the Complaint expressly alleges otherwise. As the Complaint concedes, Plaintiffs could comply with the Proclamation by receiving "a two-dose series of . . . [the] Pfizer-BioNTech" vaccine. Compl. ¶ 196A; *see also*, *e.g.*, *id* ¶¶ 75, 121, 199 (discussing availability of Pfizer BioNTech COVID-19 Vaccine). This indisputably available "Pfizer BioNTech" vaccine is the same vaccine that received full FDA approval on August 23, 2021.[12] Because Plaintiffs have failed to

[11] Although Plaintiffs falsely allege that "Governor Inslee exclusively relied on investigational new drugs," Compl. ¶ 197, Plaintiffs' assertion that the vaccine is an "investigational new drug" subject to the cited regulations is a "conclusory legal assertion" that the court need not accept as true. *Harris v. U.S. BankCorp*, No. 2:19-cv-00291-BJR, 2019 WL 5536402, at *2 (W.D. Wash. Oct. 25, 2019). Even if the Court were to consider this a factual allegation, the Court can and should disregard it because it contradicts clear, judicially noticeable facts: the authorization date of the Pfizer vaccine. *Sterling Sav. Bank*, 2011 WL 4852326, at *6.

[12] Plaintiffs allege that "[t]he FDA declared in its August 23, 2021, EUA to Pfizer that 'Pfizer-BioNTech COVID-19 Vaccine' drug is legally distinct from its licensed 'COMIRNATY' drug" and that an EUA still existed for PfizerBioNTech Vaccine, and thus, no FDA-licensed vaccine was available to them. Compl. ¶ 67, Ex. B. But Plaintiffs have conceded these drugs have "the same formulation, Dkt. # 34 at 34, and the contention that any distinction can give rise to a valid claim has been "considered and rejected" by at least two courts. *See Curtis*, 2023 WL 8828753, at *2 (citing *Johnson v. Brown*, 567 F. Supp. 3d 1230, 1241 (D. Or. 2021)). Consistent with these holdings, the August 23, 2021 EUA stated that "COMIRNATY (COVID-19 Vaccine, mRNA) is the same formulation as the Pfizer-BioNTech COVID-19 Vaccine and can be used interchangeably with the Pfizer-BioNTech COVID-19 Vaccine to provide the COVID-19 vaccination series." Compl. Ex. B at 2. Further, the September 22, 2021 EUA stated that the FDA had kept the EUA in place for individuals 16 years and older because "there remain[ed] . . .a significant amount of Pfizer-BioNTech COVID-19 Vaccine that was manufactured and labeled in accordance with this emergency use authorization." FDA EUA Letter to Pfizer, (Sept.

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allege they were required to take any "investigational" drug, their claim necessarily fails.

Plaintiffs' claim also fails for the independent reason that they have not identified any enforceable federal right. Plaintiffs assert purported rights under five authorities: the EUA Act, 45 C.F.R. § 46, the Belmont Report, the "Federal Wide Assurance," and the International Covenant on Civil and Political Rights (ICCPR). Compl. ¶¶ 317–24. But, as in *Curtis*, the plaintiffs cannot "show that any of the federal statutes, regulations, reports or international treaties they cite in their Amended Complaint apply and/or that they contain a private cause of action that is available against Gov. Inslee in federal court." 2023 WL 8828753, at *5. The Court should, therefore, dismiss Plaintiffs' claim.

22, 2021), https://pink.citeline.com/-/media/supporting-documents/pink-sheet/2021/09/fda-letter-of-authorization-to-pfizer-for-boosters.pdf?rev=619a1d78a31f4ffd9b29c34e02813c4c&hash=D2A818E8B1F836EDB78E311E9214DE35; *see also* Congressional Research Service, *FDA Approval of the Pfizer-Bio-NTech COVID Vaccine: Frequently Asked Questions* (Sept. 29, 2021), https://sgp.fas.org/crs/misc/R46913.pdf (explaining that the FDA reissued an EUA for the Pfizer-BioNTech vaccine after Comirnaty was authorized because: 1) the EUA allows the Pfizer-BioNTech vaccine and Comirnaty to be used for patient populations and clinical situations for which the drug was not licensed (for example, individuals 12–15 years of age); 2) reissuing the EUA allowed vaccine administrators to use the remaining doses of the Pfizer-BioNTech vaccine that have not yet been administered; and 3) the EUA facilitated the logistics of distributing and administering Pfizer-manufactured COVID-19 vaccines by making both available and interchangeable).

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ii. The EUA Act does not apply.

The EUA Act governs "emergency use" medications and requires the *Secretary of the U.S. Department of Health and Human Services* to "establish such conditions on an [emergency use] authorization . . . to ensure that individuals to whom the [emergency use] product is administered are informed of the option to accept or refuse administration of the product, of the consequences, if any, of refusing administration of the product." 21 U.S.C. § 360bbb-3(e)(1)(A)(ii)(III).

As an initial matter, Plaintiffs' claim fails because the EUA Act does not meet the "demanding bar" of 1983 enforceability. *Gonzaga*, 536 U.S. at 283 (noting that private right of action cases "should guide the determination whether a statute confers rights enforceable under § 1983."); *Kiss v. Best Buy Stores*, No. 3:22-cv-00281-SB, 2022 WL 17480936, at *8 (D. Or. Dec. 6, 2022), *aff'd sub nom. Kiss v. Best Buy Stores, Ltd. P'ship*, No. 23-35004, 2023 WL 8621972 (9th Cir. Dec. 13, 2023) ("[C]ourts have consistently held that the Emergency Use Authorization Act provides no private right of action.").

Even putting this aside, the EUA Act does not apply to Plaintiffs' claim for three reasons. *First*, the statute does not apply to the Proclamation: Plaintiffs could have complied with the Proclamation by obtaining the fully authorized Pfizer vaccine, which is not an "emergency use" product subject to the statute. 21 U.S.C. § 360bbb-3(e)(1)(A). *Second*, "[t]his statute does not apply to Gov. Inslee." *Curtis*,

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2023 WL 8828753, at *6. Instead, as Plaintiffs concede, Compl. ¶¶ 108, 114A, it requires the *HHS Secretary* to establish conditions for the administration of emergency use medications, and "those conditions of informed consent only relate to . . . the medical providers who administer the vaccine, not those who issue vaccine mandates," *Johnson v. Brown*, 567 F. Supp. 3d at 1256.. *Third*, the provision "specifies only that certain information be provided to potential vaccine recipients and does not prohibit entities from imposing vaccination requirements." Dep't of Justice, *Whether Section 564 of the Food, Drug and Cosmetic Act Prohibits Entities from Requiring the Use of a Vaccine Subject to an Emergency Use Authorization* (July 6, 2021), https://www.justice.gov/olc/file/1415446/download. Plaintiffs cannot credibly allege they were not informed of the "the option to accept or refuse administration of the product, [or] the consequences . . . of refusing administration of the product," as the EUA Act requires, 21 U.S.C. 360bbb-3(e)(1)(A)(ii)(III), when they *in fact* refused administration of the vaccine, and admit the Proclamation advised them of the consequences for doing so. *See Curtis*, 2023 WL 8828753, at *6 (dismissing EUA Act claim because "Plaintiffs do not allege that Gov. Inslee was required to provide them with any information that was mandated by the statute and that he did not so provide it."); *Valdez*, 559 F. Supp. 3d at 1172 (COVID vaccination requirement did not violate EUA Act where plaintiffs would

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be "informed of the risks and benefits of the vaccine and the option to accept or refuse the vaccine by their medical providers."); *Bridges v. Hous. Methodist Hosp.*, 543 F. Supp.3d 525, 527 (S.D. Tex. 2021) (rejecting hospital employee's claim that under FDCA "no one can be mandated to receive 'unapproved' medicines in emergencies"). "To the extent the Plaintiffs assert a claim under the [EUA Act], it should be dismissed." *Curtis*, 2023 WL 8828753, at *6.

iii. Plaintiff has identified no other enforceable right.

None of the remaining authorities Plaintiffs cite—45 C.F.R. § 46.116, the Belmont Report, the "Federal Wide Assurance," or the ICCPR—are enforceable under § 1983 or otherwise independently create a private right of action. *Curtis*, 2023 WL 8828753, at *6 ("There is no private right of action under 45 C.F.R. Part 46, the Belmont Report, or the ICCPR," and "Plaintiffs do not meaningfully respond to Gov. Inslee's argument that there is no private right of action for them against the governor pursuant to Federal Wide Assurance. The argument has merit and the claim should be dismissed."); *see also Elansari v. Univ. of Penn.*, 779 F. App'x 1006, 1008–09 (3d Cir. 2019) (no private right of action under 45 C.F.R. § 46); *Save Our Valley v. Sound Transit*, 335 F.3d 932, 936 (9th Cir. 2003) ("[A]n agency regulation cannot create individual rights enforceable through § 1983."); *Kriley v. Nw. Mem'l Healthcare*, No. 22-1606, 2023 WL 371643, at *2 (7th Cir. Jan. 24, 2023) (ICCPR "do[es] not create rights enforceable in federal courts," and

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the Belmont Report does not create a private right of action); *Conway v. A.I. Dupont Hosp. for Children*, No. 04-4862, 2007 WL 560502, at *7 (E.D. Pa. Feb. 14, 2007) (no private right of action under the Belmont Report); *Sosa v. Alvarez-Machain*, 542 U.S. 692, 734-35 (2004) (no private right of action under the ICCPR); *Gonzaga*, 536 U.S. at 283.

The Court can, therefore, dismiss Plaintiffs' claim without considering the substance of these provisions. But even if these sources established enforceable rights (and they do not), the Complaint fails to allege any cognizable violation.

45 C.F.R. § 46 limits the use of federal funds for "research involving human subjects," 45 C.F.R. § 46.101, defined as "a systematic investigation, including research development, testing, and evaluation, designed to develop or contribute to generalizable knowledge," 45 C.F.R. § 46.102(l). Contrary to Plaintiffs' contention, Compl. ¶¶ 37–41, the limited reporting contemplated by the August 23, 2021 EUA or the Provider Agreement, *id*. ¶¶ 81–89, does not constitute the type of "systematic investigation, including research development, testing, and evaluation" that constitutes research under 45 C.F.R. § 46. Further, Plaintiffs cannot allege that Governor Inslee expended "federal funds" as required to implicate 45 C.F.R. §

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46.122.[13] *See Bridges*, 543 F. Supp. 3d at 527 (requirement that hospital employees obtain COVID-19 vaccination was not subject to 45 C.F.R. § 46).

The Belmont Report is neither a statute nor regulation, but a mere "statement[] of principles" that applies to an "agreement to participate in research," Compl. ¶ 31.A; *Kriley*, 2023 WL 371643, at *2. It provides that "when a person participating in a study is capable of giving informed consent, the scientist conducting the experiment should not proceed without it." *Ernst v. City of Chicago*, 837 F.3d 788, 800 n. 6 (7th Cir. 2016). But, again, Plaintiffs cannot show that the vaccine mandate was for the purpose of research, that they participated in any study, that they were subjected to an experiment without informed consent, or that the Belmont Report applies to Governor Inslee, who is not a "scientist conducting [an] experiment." *Id*.

The "Federal Wide Assurance," Plaintiffs contend, is "an agreement by entities conducting business with HHS to comply with 45 CFR 46 and the Belmont Report[.]" Compl. ¶ 138. But Plaintiffs do not allege Governor Inslee was a party or otherwise subject to this assurance, which plaintiffs allege applies to "*Institution[s]* . . . engaged in human subjects research." *Id.* ¶ 139. Regardless, the assurance is irrelevant because the Proclamation does not involve "research."

[13] Plaintiffs allege only that the federal *Department of Defense* expended federal funds. Compl. ¶ 342.

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The ICCPR applies to "medical or scientific experimentation." *Id*. ¶ 92. Plaintiffs cannot allege any such experimentation.

Plaintiffs' investigational drug use claim fails because they could have complied with the Proclamation without using an "investigational drug." But even if that were not the case, their claim would fail because they have not identified any applicable right that is enforceable under § 1983. The Court should, therefore, dismiss Count 1 of Plaintiffs' complaint.

b. Plaintiffs' Due Process claim fails (Count 3)

Plaintiffs' Due Process claim, Compl. ¶¶ 331–38 fares no better, and this Court has previously rejected a due process challenge to the Proclamation. *Bacon*, 2022 WL 2381021, at *3–*4. The Due Process Clause of the Fourteenth Amendment provides that no state shall "deprive any person of life, liberty, or property, without due process of law," U.S. Const. amend. XIV, § 1, and has both substantive and procedural applications. But Plaintiffs fail to allege the elements of either a substantive or procedural due process claim.

i. Plaintiffs fail to establish a substantive due process claim.

"Substantive due process protects individuals from arbitrary deprivation of their liberty by government." *Sylvia Landfield Tr. v. City of Los Angeles*, 729 F.3d 1189, 1195 (9th Cir. 2013). Only "the most egregious official conduct can be said to be arbitrary in the constitutional sense," *Cnty. of Sacramento v. Lewis*, 523 U.S.

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833, 846 (1998) (internal quotation marks and citation omitted), and "the alleged deprivation must shock the conscience and offend the community's sense of fair play and decency," *Sylvia Landfield Tr.*, 729 F.3d at 1195 (internal quotation marks and citation omitted). "To establish a violation of substantive due process, a plaintiff must first show a deprivation of some fundamental right or liberty interest that is deeply rooted in this Nation's history and tradition." *Tutor-Saliba Corp. v. City of Hailey*, 452 F.3d 1055, 1061 (9th Cir. 2006) (cleaned up). Plaintiffs cannot do so.

The only purported interest Plaintiffs allege is the "right to refuse" the COVID vaccine. Compl. ¶ 335. But "[t]he COVID-19 vaccine mandates do not implicate a fundamental right protected by the substantive due process clause." *Curtis*, 2023 WL 8828753, at *5. To the contrary, since 1905—when the Supreme Court sustained a criminal conviction for refusing to be vaccinated, *Jacobsen v. Massachusetts*, 197 U.S. 11 (1905)—courts have consistently held there is no fundamental right to refuse vaccination and, specifically, that there is no right to refuse the COVID vaccine. *See, e.g.*, *Klaasen v. Trustees of Indiana Univ.*, 7 F.4th 592, 593 (7th Cir. 2021) ("Given *Jacobsen*, . . . there can't be a constitutional problem with vaccination against SARS-CoV-2."); *Norris v. Stanley*, 567 F. Supp. 3d 818, 821 (W.D. Mich. 2021) ("Plaintiff is absolutely correct that she possesses those rights [to privacy and bodily integrity], but there is no fundamental right to

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decline a vaccination."); *Johnson*, 567 F. Supp. 3d at 1250 ("As *Jacobsen* reveals, the right to refuse a vaccination is not deeply rooted in this nation's history. In fact, the opposite is true.") (internal citation and quotation marks omitted); *Curtis*, 2023 WL 8828753, at *5.

Implicating no fundamental right, vaccine mandates are considered under rational basis review,[14] which presumes a mandate's validity so long as it is "rationally related to a legitimate state interest." *City of Cleburne v. Cleburne Living Ctr.*, 473 U.S. 432, 440 (1985). "Governmental action is rationally related to a legitimate goal unless the action is clearly arbitrary and unreasonable, having no substantial relation to public, health, safety, morals, or general welfare." *Sylvia Landfield Tr.*, 729 F.3d at 1193 (cleaned up).

This Court has already held that "the Proclamation survives rational basis review." *Wise*, 2022 WL 1243662, at *6; *see also Bacon*, 2022 WL 2381021, at *3–4. And that holding is consistent with the weight of authority upholding vaccine mandates under this standard. *See, e.g.*, *Curtis*, 2023 WL 8828753, at *5 ("Plaintiffs have not alleged sufficient facts from which to conclude that Gov. Inslee did not have a rational basis for the Proclamation."); *Kheriaty v. Regents of*

[14] While the Due Process Clause "provides heightened protection against government interference with certain fundamental rights and liberty interests," *Wash. v. Glucksberg*, 521 U.S. 702, 720 (1997), plaintiffs have alleged no such right, *Jacobsen*, 197 U.S. 11; *Klaasen*, 7 F.4th at 593; *Norris*, 567 F. Supp.3d at 821; *Johnson*, 567 F. Supp. 3d at 1250.

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the Univ. of Cal., No. SACV 21-01367 JVS (KESx), 2021 WL 4714664, at *6 (C.D. Cal. Sept. 29, 2021) ("The Vaccine Policy satisfies rational basis review under both substantive due process and the equal protection clause."); *Johnson*, 567 F. Supp.3d at 1254 ("Plaintiffs are not likely to succeed in showing that the Vaccine Orders shock the conscience and thus violate Plaintiffs' rights under the Due Process Clause of the Fourteenth Amendment."); *Valdez*, 559 F. Supp.3d at 1176 ("The vaccination requirements set forth in the PHO, thus grounded in medicine and science, are rationally related to Defendants' legitimate purpose of protecting our community 'against an epidemic of disease [that] threatens the safety of its members.'"); *Williams v. Brown*, 567 F. Supp. 3d 1213, 1227 (D. Or. 2021) ("[T]he Court has no trouble concluding that the vaccine mandates are rationally related to a legitimate state interest.").

There is no question the Proclamation is valid. The State has a legitimate interest in slowing the spread of COVID-19, which at the time of the Proclamation was infecting thousands of Washingtonians daily.[15] Data from that period showed that unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[16] Thus, Plaintiffs cannot allege the Proclamation was

[15] CDC, *COVID Data Tracker*, *supra* note 1.
[16] CDC, CDC, *Morbidity and Mortality Weekly Report (MMWR)* supra note 9.

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not rationally related to furthering the state interest in slowing the spread of COVID-19. *Bacon*, 2022 WL 2381021, at *3; *Curtis*, 2023 WL 8828753, at *5; *Kheriaty*, 2021 WL 4714664, at *6; *Johnson*, 567 F. Supp. 3d at 1254; *Valdez*, 559 F. Supp. 3d at 1176; *Williams*, 567 F. Supp. 3d at 1227. Plaintiffs' substantive due process claim fails.

ii. Plaintiffs fail to establish a procedural due process claim.

A procedural due process claim requires: (1) a constitutionally protected liberty or property interest; (2) a deprivation of that interest by the government; and (3) a lack of adequate process. *Shanks v. Dressel*, 540 F.3d 1082, 1090 (9th Cir. 2008). Plaintiffs' claim fails for three reasons.

First, Plaintiffs again fail to identify a "constitutionally protected liberty or property interest." *See supra* Section B.2.b.i; *Shanks*, 540 F.3d at 1090; *Evans v. N.Y.C. Health & Hospitals Corp.*, No. 21-CV-10378 (PAE) (VF), 2023 WL 5920189, at *6 (S.D.N.Y. Aug. 7, 2023).

Second, as "laws of general applicability affecting a broad geographic area," *Hotel & Motel Ass'n of Oakland v. City of Oakland*, 344 F.3d 959, 969 (9th Cir. 2003), vaccine mandates generally do not implicate procedural due process concerns, *Williams*, 567 F. Supp. 3d at 1224 (procedural due process claim was unlikely to succeed because "the vaccine mandates are plainly laws of broad

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applicability and apply respectively to healthcare workers, school employees, and state executive employees across Oregon.").

Third, "to the extent that any process is required," *id*., the Proclamation satisfies this requirement because it "created a process by which employees could apply for exemptions and accommodations, and essentially present [their] side of the story to avoid termination," which is "all that [the law] requires," *Pilz*, 2022 WL 1719172, at *7 (cleaned up); *see also Bacon*, 2022 WL 2381021, at *2 (dismissing procedural due process claim because "Plaintiffs were not entitled to greater notice than what was provided in the Proclamation itself."); *Wise*, 2022 WL 1243662, at *5 ("Plaintiffs fail to articulate how these processes, which are greater than the constitutional minimums required, violate their procedural due process rights."); *Curtis*, 2023 WL 8828753, at *5 (dismissing equivalent procedural due process claim because "[t]he Plaintiffs fail to point to facts, which if believed, would demonstrate that they were denied 'adequate procedural protections' from Gov. Inslee. They fail to point to procedural protections that they were due but did not receive.").The Court should thus dismiss Plaintiffs' procedural due process claim.

c. Plaintiffs' Equal Protection claim fails (Count 2)

Plaintiffs' equal protection claim, Compl. ¶¶ 326–30, also fails. "The Equal Protection Clause of the Fourteenth Amendment commands that no state shall deny

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to any person within its jurisdiction the equal protection of the laws, which is essentially a direction that all persons similarly situated should be treated alike." *City of Cleburne*, 473 U.S. at 439 (cleaned up). To prevail on an equal protection claim, a plaintiff must "show that a class that is similarly situated has been treated disparately." *Boardman v. Inslee*, 978 F.3d 1092, 1117 (9th Cir. 2020) (internal quotation marks and citation omitted). Where no suspect class is implicated, a state action "need only rationally further a legitimate state purpose to be valid." *Minn. State Bd. for Cmnty. Colls v. Knight*, 465 U.S. 271, 291 (1984); *see also Curtis*, 2023 WL 8828753, at *4 (a "class of one" equal protection claim requires plaintiffs to "demonstrate Gov. Inslee: (1) intentionally (2) treated them differently than other similarly situated groups, (3) without a rational basis."). "The rational basis review test is functionally the same under substantive due process and the Equal Protection Clause," *Kheriaty*, 2021 WL 4714664, at *7. "Given the standard of review, it should come as no surprise that the [courts] hardly ever strike[] down a policy as illegitimate under rational basis scrutiny." *Trump v. Hawaii*, 585 U.S. ---, 138 S. Ct. 2392, 2420 (2018).

This Court rejected a functionally identical equal protection claim in *Bacon*, reasoning that "Plaintiffs' claim fails as a matter of law as they have failed to allege membership in a suspect class; therefore, rational basis is the applicable standard and the Proclamation survives that standard of review." *Bacon*, 2022 WL

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2381021, at *3 (noting that "[w]hile the Proclamation differentiates between vaccinated and unvaccinated employees, the classifications serve a legitimate government purpose, which is to slow the spread of COVID-19, and the classifications are not arbitrary or irrational"). The Western District of Washington reached the same conclusion in *Curtis*. 2023 WL 8828753, at *4 ("At the time of the Proclamation, there was a rise in COVID-19 cases, hospitalizations and deaths. Inslee had a rational basis for the Proclamation.") (cleaned up). And the same is true here.

Plaintiffs do not allege they are members of a suspect class, nor can they. *See Kheriaty*, 2021 WL 4714664, at *7 ("Whether the class here is formulated as 'non-vaccinated individuals,' 'individuals who have previously had COVID-19,' or 'non-vaccinated individuals with immunity to COVID-19,' [plaintiff] presents no authority to show that any court has found a similar classification to be suspect or quasi-suspect."); *Valdez*, 559 F. Supp. 3d at 1178 (vaccine mandate does not "target a suspect class, as it does not 'categorize persons based on suspect classifications, such as race and national origin,' or on 'quasi-suspect' classifications, such as gender and illegitimacy."). Accordingly, the Proclamation is subject only to rational basis review—which it easily passes. *See supra* Section B.2.b.i.

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"[A]s with . . . substantive due process claim[s]," courts have "no trouble discerning a legitimate state interest in slowing the spread of COVID-19" and upholding vaccine mandates under this standard. *Williams*, 567 F. Supp. 3d at 1228; *see also Curtis*, 2023 WL 8828753, at *4; *Bacon*, 2022 WL 2381021, at *3; *Kheriaty*, 2021 WL 4714664, at *7–*9; *Valdez*, 559 F. Supp. 3d at 1178; *Andre-Rodney v. Hochul*, 618 F. Supp. 3d 72, 81(N.D.N.Y. 2022); *cf. Johnson*, 567 F. Supp. 3d at 1254. The Court should, therefore, dismiss Plaintiffs' equal protection claim.

d. Plaintiffs' Spending Clause claim fails (Count 4)

Though Plaintiffs purport to state a claim under the "Spending Clause," it is entirely unclear what that claim is. The Spending Clause of the United States Constitution provides limits on the federal government's ability to place conditions on the use of federal funds, *S. Dakota v. Dole*, 483 U.S. 203, 206 (1987), and does not apply to state officials like Governor Inslee. *See Curtis*, 2023 WL 8828753, at *5 ("Plaintiffs fail to point to any authority that [the Spending Clause] places limits on state governors."). The Complaint itself concedes that "*spending legislation* g[ives] rise to rights enforceable under § 1983 *only* . . . where *statutory provisions explicitly conferred specific monetary entitlements* on plaintiffs." Compl. ¶ 341 (emphasis added; quoting *Gonzaga*, 536 U.S. 273). But Plaintiffs' claim fails

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because they identify no applicable "spending legislation" and no relevant "specific monetary entitlement."

Plaintiffs identify no relevant spending legislation. The only arguable "spending legislation" Plaintiffs identify—10 U.S.C. § 980—is both inapplicable and unenforceable. That statute provides only that "[f]unds appropriated *to the Department of Defense* may not be used for research involving a human being." 10 U.S.C. § 980 (emphasis added). It neither applies to Governor Inslee, nor the Proclamation which (again) involves no such "research." *See Curtis*, 2023 WL 8828753, at *6 ("The Plaintiffs have failed to allege sufficient facts from which they could obtain relief from Gov. Inslee based on this statute. There is no allegation that he expended Department of Defense funds or was obligated to inform the Plaintiffs of information, and he did not provide such information."). It is also unenforceable by Plaintiffs. The Supreme Court has "rejected attempts to infer enforceable rights from Spending Clause statutes" unless they "unambiguously confer an enforceable right upon the Act's beneficiaries." *Gonzaga Univ.*, 536 U.S. at 281. By contrast, statutes that "have an aggregate, not individual, focus and . . . serve primarily to direct the . . . distribution of public funds . . . create no rights enforceable under § 1983." *Id*. at 290. Applying that standard, the Supreme Court has held that a statute providing that "[n]o funds shall be made available . . . to any educational agency or institution which has a

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[prohibited] policy or practice," did not create a right enforceable under § 1983. *Id*. at 287. For the same reason, 10 U.S.C. § 980's limitation on the "distribution of public funds" creates no enforceable right.

Plaintiffs' remaining allegations purport to rely on "rights" under the Provider Agreement, the EUA Act, 45 C.F.R. § 46.122, 10 U.S.C. § 980 and the Fourteenth Amendment, Compl. ¶¶ 360—none of which is "spending legislation" subject to the Spending Clause, and none of which give Plaintiffs any viable cause of action.

The EUA Act and 45 C.F.R. § 46 do not apply for the reasons discussed above. *See supra* Section III.B.2.a. The Provider Agreement cannot establish any claim against Governor Inslee for the reasons discussed below. *See infra* Section III.C.1. And Plaintiffs offer no explanation for their invocation of the Fourteenth Amendment in this claim; to the extent Plaintiffs are reiterating their claims under the Due Process and Equal Protection Clauses, those claims fail for the reasons discussed above. *See supra* Section III.B.2.b-c.

Plaintiffs identify no "specific monetary entitlement." Plaintiffs' Spending Clause claim fails for the independent reason that the only two purported "specific monetary entitlement" they identify cannot support their claims. *First*, Plaintiffs' contend that "the 'specific monetary entitlement' [at issue here] . . . is that the EUA investigational drugs . . . are free of charge." Compl. ¶ 344. But that's

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nonsensical: Plaintiffs cannot claim the federal government improperly conditioned their entitlement to the vaccine on the requirement that they obtain that same vaccine.

Second, Plaintiffs contend that the "Provider Agreement" created a monetary entitlement to "seek out a participating COVID-19 Program healthcare professional, obtain medical counseling, ask questions, and read literature," and "choose not to participate . . . [without] incur[ing] a fee[.]" Compl. ¶ 356. But Plaintiffs do not contend either that they were denied the opportunity for "counseling" or charged any "fee" that would make this purported entitlement relevant to their claims.

The Court should dismiss Plaintiffs' indecipherable "Spending Clause" claim because "[i]t is unclear what legal theory Plaintiffs are attempting to advance[.]" *Bacon*, 2022 WL 2381021, at *4 (E.D. Wash. June 30, 2022); *see also Robertson v. Dean Witter Reynolds, Inc.*, 749 F.2d 530, 534 (9th Cir. 1984) ("A complaint may be dismissed as a matter of law for . . . lack of a cognizable legal theory[.]").

e. The Unconstitutional Conditions Doctrine does not apply (Count 5)

Plaintiffs next contend that the Proclamation violated the "unconstitutional conditions doctrine," Compl. ¶¶ 362–68, which "vindicates the Constitution's

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enumerated rights by preventing the government from coercing people into giving them up." *Koontz v. St. Johns River Water Mgmt. Dist.*, 570 U.S. 595, 595–96 (2013). But that doctrine does not apply where "there is no governmental benefit at issue." *Norris v. Stanley*, No. 1:21-cv-756, 2022 WL 247507, at *4 (W.D. Mich. Jan. 21, 2022) (cleaned up). And where a "[p]laintiff . . . is an at-will employee, no government benefit [is] denied" by their termination. *Antunes v. Rector & Visitors of Univ. of Va.*, 627 F. Supp. 3d 553, 566 (W.D. Va. 2022), *appeal docketed*, No. 22-2190 (4th Cir. 2022).

Here, Plaintiffs appear to concede they were at-will employees of Shriners, non-profit healthcare providers. *See, e.g.*, Compl. ¶¶ 161, 171, 314, 372 (seeking to set aside "the State's at-will employment doctrine" and "at-will employment law"). Accordingly, the Proclamation "does not coerce Plaintiffs into waiving their constitutional rights . . . in order to receive a governmental benefit such as a tax exemption, medical treatment, or some sort of governmental funding," but rather "the 'benefit' at issue here is Plaintiffs' employment . . ., to which they are not constitutionally entitled." *Norris*, 2022 WL 247507, at *4; *see also Curtis*, 2023 WL 8828753, at *7 ("The Amended Complaint acknowledges that the Plaintiffs are 'at will' employees of a private employer . . . Accordingly, they fail to plead sufficient facts to allege that a government benefit has been denied. The Plaintiffs'

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unconstitutional conditions doctrine claim should be dismissed.") (emphasis in original).

In addition, "a government entity does not impose an unconstitutional condition by enforcing a duly enacted, constitutional law." *Burcham v. City of Los Angeles*, 562 F. Supp. 3d 694, 707 n. 4 (C.D. Cal. 2022). And the Supreme Court has "settled that it is within the police power of a state to provide for compulsory vaccination." *Zucht v. King*, 260 U.S. 174, 176 (1922). Because Plaintiffs "have not plausibly alleged that the state could not directly impose a vaccination requirement as part of the state's police power," they have "failed to allege a required 'predicate' of an unconstitutional conditions claim." *Hochul*, 618 F. Supp. 3d at 85; *see also Legaretta v. Macias*, 603 F. Supp. 3d 1050, 1070–71 (D.N.M. 2022) (vaccine mandate "does not violate any of Plaintiffs' fundamental rights[, and w]ithout identifying a fundamental right, Plaintiffs' challenge to the Vaccine Mandate as an unconstitutional condition necessarily fails."); *Smith v. Biden*, No. 1:21-cv-19457, 2021 WL 5195688, at *8 (D.N.J. Nov. 8, 2021) (rejecting unconstitutional conditions claim because plaintiffs are "presented with a choice and are not being coerced to give up a fundamental right since there is no fundamental right to refuse vaccination."). The Court should, therefore, dismiss Plaintiffs' unconstitutional conditions claim.

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f. Plaintiffs' PREP Act claim fails (Count 6)

Plaintiffs contend that the Proclamation "violated Plaintiffs' rights to accept or refuse participation in PREP Act covered countermeasures without pressure or influence being placed upon them." Compl. ¶ 381. But the PREP Act confers no such right.

The PREP Act authorizes the Secretary of Health and Human Services to authorize certain "covered countermeasures"—such as an EUA drug—after "mak[ing] a determination that disease or other health conditions or other threat to health constitutes a public health emergency, or . . . future . . . emergency." 42 U.S.C § 247d-6d(b)(1), (i)(1). But rather than creating a cause of action, the PREP Act "creates *immunity* for all claims of loss causally connected to the administration or use of [such] covered countermeasures." *Eaton v. Big Blue Healthcare, Inc.*, 480 F. Supp. 3d 1184, 1191 (D. Kan. 2020) (emphasis added); 42 U.S.C. § 247d-6d(a)(1) (providing for "immun[ity] from suit and liability under Federal and State law" in connection with "use by an individual of a covered countermeasure."). Accordingly, the PREP Act is typically raised as a *defense*, not an affirmative claim. *See, e.g.*, *Casabianca v. Mount Sinai Med. Ctr.*, No. 112790/10, 2014 WL 10413521, at *4 (N.Y. Sup. Ct. Dec. 2, 2014) (rejecting defendant's assertion that PREP Act preempted plaintiff's malpractice claim for failing to administer a vaccine because, under PREP Act, "the injury must be one .

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. . occur[ing] from the administration or use of the vaccine, no matter what circumstances led to that use); *Gunter v. CCRC OPCO-Freedom Square, LLC*, No. 8:20-cv-1546-T-36TGW, 2020 WL 8461513, at *3–4 (M.D. Fla. Oct. 29, 2020) (granting plaintiff's motion to remand where plaintiff's "claims do not fall within the scope of the PREP Act.").

"[T]he sole exception to the [PREP Act's] immunity from suit and liability . . . [is] an exclusive Federal cause of action against a covered person for death or serious physical injury proximately caused by willful misconduct," which must "be filed and maintained only in the United States District Court for the District of Columbia," and must be accompanied by a physician's affidavit and certified medical records documenting the alleged injury. 42 U.S.C. § 247d-6d(d)(1), (e)(1), (e)(4); *see also Eaton*, 480 F. Supp.3d at 1191. But Plaintiffs cannot come within this exception because: (1) they have not alleged they suffered "death or serious physical injury," 42 U.S.C. § 247d-6d(d)(1); (2) they cannot allege Governor Inslee engaged in "willful misconduct"—defined as "an act or omission that is taken . . .(i) intentionally to achieve a wrongful purpose; (ii) knowingly without legal or factual justification; *and* (iii) in disregard of a known or obvious risk that is so great as to make it highly probable that the harm will outweigh the benefit," 42 U.S.C. § 247d-6d(c)(1)(A) (emphasis added); (3) they have not filed suit in the DC District Court, which is the exclusive venue for such a claim, 42 U.S.C. §

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247d-6d(e)(1); and (4) they have not and cannot provide the documentation of physical injury or death that must accompany such a claim, 42 U.S.C. § 247d-6d(e)(4).

Even putting aside these insurmountable hurdles, Plaintiffs' claim would still fail because they have not exhausted their administrative remedies. Before bringing the limited "exclusive claim" available under the PREP Act, plaintiffs must first seek compensation from the "Covered Countermeasure Process Fund" and show that either "amounts have not by law been provided for the Fund" or "the Secretary [has] fail[ed] to make a final determination on a request for benefits or compensation filed" within a certain period. 42 U.S.C. § 247d-6e(d)(1); *see also Bolton v. Gallatin Ctr. for Rehab. & Healing, LLC*, 535 F. Supp. 3d 709, 720 (M.D. Tenn. 2021) ("[T]he PREP Act creates no similar exclusive federal cause or right of action for claims other than those involving willful misconduct, and even those claims require administrative exhaustion before they may be filed in federal court."). They have not done so and their claim fails.

The PREP Act establishes no viable claim here and, in any event, imposes exhaustion requirements that Plaintiffs have not satisfied. The Court should, therefore, dismiss Plaintiffs' PREP Act claim.

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C. Plaintiffs' State Law Claims Fail as a Matter of Law

Plaintiffs' state law claims against Governor Inslee fare no better because: (1) they identify no contract he was party to and could have breached; (2) they fail to allege the elements of any specific "employment tort" and, in any event, concede Governor Inslee was not their employer; (3) they cannot allege that the Proclamation—a reasoned exercise of the State's police power to protect the lives of Washington residents—constitutes "extreme or outrageous conduct"; and (4) their "implied right of action" claim concerns only Shriners. The Court should, therefore, dismiss Plaintiffs' state law claims against Governor Inslee.

1. Plaintiffs' Breach of Contract Claim Fails (Count 7)

Plaintiffs allege that the Proclamation "deprived [them of] the benefits intended to be conferred" by the Provider Agreement." Compl. ¶ 388. But even if Plaintiffs could establish they are third-party beneficiaries, the Provider Agreement gives them no claim against Governor Inslee because he was not a party to that agreement, *see* Compl. ¶ 210, Ex. A, and so could not have committed any breach. As the Western District of Washington stated when confronted with an equivalent claim, "[w]hile the Amended Complaint alleges that Gov. Inslee voluntarily agreed to participate in the COVID-19 Vaccination Program . . . it does not allege that he signed the Provider Agreement. (Healthcare facilities administering the vaccines signed it). Accordingly, Gov. Inslee did not agree to a duty imposed by the

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Provider Agreement. The breach of contract claim asserted against him should be dismissed." *Curtis*, 2023 WL 8828753, at *8; *see also Jones-Alley v. MTGLQ Invs., LP*, No. C19-0708-JCC, 2020 WL 433354, at *2 (W.D. Wash. Jan. 28, 2020), *aff'd sub nom. Alley v. MTGLQ Invs.*, LP, 848 F. App'x 742 (9th Cir. 2021) (dismissing breach of contract claim against defendant who was "not a party to" the contract); *Grondal v. United States*, 513 F. Supp. 3d 1262, 1276 (E.D. Wash. 2021) ("Wapato Heritage cannot seek relief for the BIA's alleged breach of a contract where the BIA is not a party to the contract."). The Court should dismiss Plaintiffs' breach of contract claim against Governor Inslee.

2. Plaintiffs' "Employment Torts" Claims Fail (Count 8)

Plaintiffs' vague allegation that Defendants committed unspecified "common law employment torts" fails for two reasons. As an initial matter, Plaintiffs' failure to specify the nature of their claims is, itself, grounds for dismissal. *See Robertson*, 749 F.2d at 534; *see also Turner v. BCForward*, No. C22-359-RSL, 2022 WL 1078869, at *2 (W.D. Wash. Apr. 11, 2022) (ordering plaintiff to show cause why complaint should not be dismissed where "the Court would have to speculate not only regarding the nature of her claim, but also about the factual basis for her claim."). Moreover, because Plaintiffs have not and cannot allege that Governor Inslee was their employer, no "employment tort" can stand against Governor Inslee. *See, e.g., Smith v. Bates Technical College*, 139 Wn.2d

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793, 800–01, 991 P.2d 1135 (2000) (Washington tort of wrongful discharge constrains actions of *employer*). The Court should, therefore, dismiss these claims against Governor Inslee. *See Curtis*, 2023 WL 8828753, at *8 ("The Plaintiffs[] fail to explain the 'employment torts' claim. There is no allegation that Gov. Inslee was the Plaintiffs' employer. This claim should be dismissed.").

3. Plaintiffs' Outrage Claim Fails (Count 9)

Plaintiffs' outrage claim also fails as a matter of law. Compl. ¶¶ 403–06. That tort requires proof of three elements: (1) extreme and outrageous conduct, (2) intentional or reckless infliction of emotional distress, and (3) actual result to plaintiff of severe emotional distress. *Reid v. Pierce Cnty.*, 136 Wn.2d 195, 202 (1998). The alleged conduct "must be 'so outrageous in character, and so extreme in degree, as to go beyond all possible bounds of decency, and to be regarded as atrocious, and utterly intolerable in a civilized community.'" *Reyes v. Yakima Health Distr.*, 191 Wn.2d 79, 91 (2018) (internal quotation marks omitted) (quoting *Grimsby v. Samson*, 85 Wn.2d 52, 59 (1975)). "Consequently, the tort of outrage 'does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities.'" *Kloepfel v. Bokor*, 149 Wn.2d 192, 196 (2003) (internal quotation marks omitted) (quoting *Grimsby*, 85 Wn.2d at 59).

Federal courts have consistently held that employee COVID-19 vaccination mandates do not give rise to claims for intentional infliction of emotional

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distress—a required element of outrage. *See Cala v. Moorings Park Cmty Health, Inc.*, No. 2:22-cv-635-JES-NPM, 2022 WL 17405581, at *5 (M.D. Fla. Dec. 2, 2022), *reconsideration granted*, 2023 WL 1102646 (M.D. Fla. Jan. 30, 2023) (dismissing intentional infliction of emotional distress claim based on her employment termination for refusing to take the COVID-19 vaccine); *Finkbeiner v. Geisinger Clinic*, No. 4:21-CV-01903, 2022 WL 3702004, at *7 (M.D. Pa. Aug. 26, 2022); *Cesare v. PACT MSO, LLC*, No. 3:23-CV-253 (SVN), 2023 WL 5893429, at *5-*6 (D. Conn. Sept. 11, 2023).

The circumstances surrounding the Proclamation demonstrate why: Governor Inslee issued the Proclamation based on the virus' "significant progression in Washington," the "high risk it poses to our most vulnerable populations and our health care system," and the conclusion of "epidemiological modeling experts . . . that the spread of COVID-19, if left unchecked, threatened to overwhelm portions of Washington's public and private health-care system." Procl. 21-14 at 1. As described above, the CDC reported at the time that unvaccinated people were 5 times more likely to contract, 10 times more likely to be hospitalized with, and 10 times more likely to die from COVID-19 than those who were fully vaccinated.[17] Governor Inslee concluded—consistent with CDC guidance[18]—that

[17] CDC, CDC, *Morbidity and Mortality Weekly Report (MMWR)* supra note 9.
[18] CDC, *Overview of COVID-19 Vaccines*, *supra* note 7.

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the COVID-19 vaccines were "safe and effective." Procl. 21-14 at 2. For these reasons, roughly half of the United States was under a vaccine mandate of some form.[19]

Governor Inslee's reasoned exercise of the State's established police powers is neither "outrageous," nor "extreme." *See Curtis*, 2023 WL 8828753, at *8 ("The Plaintiffs' outrage claim should be dismissed. The properly credited allegations in the Amended Complaint are insufficient from which to conclude that the Proclamation was 'beyond all possible bounds of decency' considering the circumstances at the time."). The Court should dismiss Plaintiffs' outrage claim.

4. Plaintiffs' Implied Right of Action Claim Fails (Count 10)

Plaintiffs allege that "[s]hould the court not agree that *Shriners* . . . was engaged in State Action, . . . [the EUA Act] contains an implied private right of action." Compl. ¶ 408 (emphasis added). Plaintiffs have no claim under the EUA Act for the reasons stated above. *See supra* Section III.B.2.a. And regardless, the Court should dismiss this claim against Governor Inslee because Plaintiffs' allegations once again relate only to Shriners.

[19] PBS News Hour, *Here's who's covered by COVID-19 vaccine mandates in the U.S. so far* (Sept. 16, 2021), https://www.pbs.org/newshour/health/heres-whos-covered-by-covid-19-vaccine-mandates-in-the-u-s-so-far.

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D. Qualified Immunity Bars Claims Against Governor Inslee in his Individual Capacity.

Government officials sued in their individual capacity are entitled to qualified immunity "from liability for civil damages insofar as their conduct does not violate clearly established statutory or constitutional rights of which a reasonable person would have known." *Pearson v. Callahan*, 555 U.S. 223, 231 (2009).[20] For a right to be clearly established, "existing precedent must have placed the statutory or constitutional question beyond debate" such that "every 'reasonable official would [have understood] that what he is doing violates that right.'" *Ashcroft v. al-Kidd*, 563 U.S. 731, 741 (2011) (citations omitted). The plaintiff in a § 1983 action bears the burden of proving that the right allegedly violated was clearly established at the time of the official's allegedly impermissible conduct. *Camarillo v. McCarthy*, 998 F.2d 638, 639 (9th Cir. 1993).

Plaintiffs' claims for breach of contract, employment torts, and outrage do not even allege constitutional or statutory rights. To the extent these claims are brought against Governor Inslee in his individual capacity, Plaintiffs cannot overcome the presumption of immunity.

[20] A government official may be sued in an official or individual capacity. *See Kentucky v. Graham*, 473 U.S. 159, 165 & n. 10 (1985). "Personal capacity suits seek to impose personal liability upon a government official for actions he takes under color of law. Official-capacity suits, in contrast generally represent only another way of pleading an action against an entity of which an officer is an agent." *Id*. at 165 (citation and internal quotation marks omitted).

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And Plaintiffs' fanciful § 1983 claims fail to identify any actual rights purportedly violated by the Proclamation, *see supra* Section III.B, let alone any right that was "clearly established at the time of" the Proclamation. *Truman v. Orem City*, 1 F.4th 1227, 1235 (10th Cir. 2021). As the Western District of Washington recognized when addressing nearly identical claims, "[t]he Plaintiffs have failed to point to any grounds from which to conclude that Gov. Inslee's Proclamation violated constitutional or statutory rights that were 'clearly established when viewed in the specific context of the case'" and "Gov. Inslee is entitled to qualified immunity on all the federal claims." *Curtis*, 2023 WL 8828753, at *7–*8. The Court should dismiss this case against Governor Inslee in his individual capacity.

E. The Court Should Dismiss Plaintiffs' Claims with Prejudice.

"Rule 12(b)(6) is an adjudication on the merits and may result in a dismissal with prejudice when the record before the court supports that amendment is futile." *Kassner v. Kadlec Reg. Med. Ctr.*, No. CV-11-5114-RMP, 2012 WL 2597918, at *3 (E.D. Wash. July 5, 2012); *see also Eriksen v. E3 Land, LLC*, No. 2:17-CV-252-RMP, 2017 WL 3758769, at *2 (E.D. Wash. Aug. 30, 2017) (stating that amendment would be futile because "no facts can change an untenable legal argument."). Plaintiffs' federal and state claims suffer from inherent legal and factual deficiencies that cannot be cured with re-pleading.

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Plaintiffs' 1983 claims are inherently unsound because: the Pfizer vaccine is not an "investigational drug," the Proclamation was rationally related to the legitimate purpose of slowing COVID's spread, Plaintiffs were not part of any "research," are not members of any suspect class, and have no fundamental right to refuse the vaccine. And Plaintiffs' state law claims fare even worse, accusing Governor Inslee of: breaching a contract he was not party to; committing unspecified "employment torts" against individuals who were not his employees; and exceeding "all possible bounds of decency" by attempting to save lives by issuing a vaccine mandate in line with half the states in the country.

Because there is no factual allegation or legal theory Plaintiffs can offer to salvage these claims, the court should dismiss the Complaint with prejudice.

IV. CONCLUSION

Governor Inslee respectfully requests that this Court dismiss the Complaint with prejudice.

DATED to this 16th day of January, 2024.

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CERTIFICATE OF SERVICE

I hereby certify that on this 16th day of January, 2024, I electronically filed the foregoing document with the Clerk of the United States District Court using the CM/ECF system which will send notification of such filing to all parties who are registered with the CM/ECF system.

DATED this 16th day of January, 2024.

Sydney Henderson

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